DEPARTMENT OF THE TREASURY
SF 1013 - JUSTIFICATION & APPROVAL FOR FAR SUBPART 13.5 SOLE SOURCE (INCLUDING BRAND NAME) ACQUISITIONS

1. Identification of the requiring activity and the contracting activity:
The requiring activity is the Internal Revenue Service (IRS), Enterprise Operations (EOps), The contracting activity is Office of Chief Procurement Officer, Operations Division HCO/CFO/C&L/COO/CPO/RISK Section 1.

2.a Nature and/or description of the action being approved:

The purpose for this Justification and Approval (J&A) is to obtain approval to award a firm-fixed price (FFP) task order with Ex Libris, for the purchase of the brand name Alma & Primo (Library) Software as described in section 3.a below.

This sole source requirement is currently being performed under deliver/task order 2032H5-21-P-00129 which was awarded to Ex Libris USA Inc., with period of performance of September 30, 2021 through September 29, 2025.

The need date for this requirement is September 30, 2025, and the period of performance is as follows:
Base Period: September 30, 2025 - September 29, 2026
Option Period 1: September 30, 2026 - September 29, 2027
Option Period 2: September 30, 2027 - September 29, 2028
Option Period 3: September 30, 2028 - September 29, 2029
Option Period 4: September 30, 2029 - September 29, 2030

The resultant task order includes the Availability of Funds clause IAW FAR 32.706-1. Option will be funded utilizing appropriation of the fiscal year in which the option year is exercised. See to requisition no. 5000208058 for a copy of the Statement of Work (SOW), titled "Counsel Library."

2.b Name of the vendor. Ex Libris (USA) Inc

2.c Requisition No.: 5000208058

2.d Bridge contract: ☐ Yes ☒ No	**2.e Brand name:** ☒ Yes ☐ No

3.a A description of the supplies or services required to meet the agency's needs:

The proposed acquisition is to acquire Ex Libris Alma & Primo Library Services Platform (LSP) software, licenses, browser requirements, application software technical support, system maintenance.

Ex Libris Alma & Primo Library Services software is a Software-as-a-service (SaaS), cloud-based platform, designed for managing all types of library materials, physical, electronic, or digital. It offers a unified interface for library staff to handle acquisition, cataloging, digitalization, journals, images, audio, video, and more. Alma & Primo also complies with security, such as FedRAMP Tailored Authorization and GDPR, ensuring safety.

The IRS Office of the Chief Counsel's statutory obligations under 26 U.S.C. § 7803(b)(2), include to furnish legal opinions, represent the IRS Commissioner before the U.S. Tax Court, determine which actions should be litigated under the laws relating to the IRS, and prepare recommendations for the Department of Justice. The IRS, Office of Chief Counsel Library (hereafter Library), answers legal research reference questions, provides specialized training, and curates a premier legal research collection of both print and electronic resources. To meet these statutory obligations, the Library provides advanced legal research support and tools to Chief Counsel attorneys. This includes using a variety of print and electronic resources that the library procures, maintains, and makes available for employee use.

Thus, the IRS needs Alma & Primo software to efficiently performs its statutory obligations.

3.b Includes IT: ☒ Yes ☐ No

3.c IGCE/Estimated dollar value:

The total IGCE amount is $334,573.13 for twelve-months period. See IGCE for additional details.

4. Identification of the authority being used (Check the box that applies):

☒ 41 U.S.C. 1901 – Simplified acquisition procedures.

☐ 41 U.S.C. 1903 – Special emergency procurement authority.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

The proposed contractor's unique qualifications and the nature of the acquisition are as follows:

i. Ex Libris is the only producer and retailer of Higher-Ed Platform (Alma, Primo), a proprietary FedRAMP SaaS for libraries. The system offers a fully integrated LSP and discovery platform with a FedRAMP Tailored authorization. The Alma + Primo suite is uniquely positioned to meet IRS requirements by delivering a native SaaS solution that supports electronic and print resource management, discovery integration, linked data, and advanced analytics. Most critically, Ex Libris' platform complies with both NIST security standards and federal cloud security policies, which is essential for IRS systems handling sensitive but unclassified information.

ii. In accordance with IRM 10.5.1.6.18.4, the IRS is required to use an existing FedRAMP-authorized cloud service, offering (CSO) when procuring commercial cloud services. The IRM specifically states that use of a FedRAMP CSO is required, and that any deviation from this policy must be supported by a compelling justification. In this case, no other vendor, besides Ex Libris, offers an LSP and discovery layer that is both FedRAMP authorized and functionally suited to the IRS's enterprise library environment. Competing systems—including OCLC WorldShare, SirsiDynix Symphony, Koha (LibLime), and Innovative's Sierra—either lack FedRAMP authorization or do not deliver a comparable level of integration and security to support IRS operations.

iii. The table below compares the essential features/capabilities of Ex Libris Alma + Primo software to other similar software brands. Market research of these brands indicates other brands do not meet IRS requirements.

6. A description of efforts to ensure that offers were solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by FAR subpart 5.2 and, if not, which exception under FAR 5.202 applies:

On August 19, 2025, a Request for Information (RFI) was issued in SAM.gov. The purpose of the RFI was to confirm whether additional sources were capable of providing FedRAMP authorized cloud service. No additional capable vendors were identified.

Additionally, the Contract Specialist conducted market research in existing Government databases, as such FPDS, SAM.gov, and USA Spending, and identified that other agencies awarded similar and/or identical requirement to the incumbent at sole source basis (i.e. Notice ID N018925Q0008 National Oceanic and Atmospheric Administration (NOAA)).

In accordance with FAR subpart 5.2, a notice of intent to award a sole source contract under the authority of FAR subpart 13.5 will be posted on the Government Point of Entry. This notice will afford an opportunity for all responsible sources to submit a capability statement which shall be considered by the Government.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable:

The anticipated cost to the Government will be evaluated for fairness and reasonableness based on a comparison of the (IGCE) and the historical pricing of the current contract for the same products and incidental services.

The Contracting Officer (CO) will utilize the historical pricing date and other methods determinate pricing dated to determine the fairness of the proposed pricing. The CO will also utilize the IGCE, which was developed using recent market research and known subscription pricing structures, while the existing contract provides a reliable benchmark for comparison. The proposed price will compared to historical prices and the IGCE and any other exceptions and variances will be analyzed to determine acceptability. Allowing the agency to find the best value that meet the governments need.

8. A description of the market research conducted (see FAR part 10) and the results or a statement of the reason market research was not conducted:

Treasury Mandatory Sources must be considered in accordance with DTAP part 1008 as well as small businesses in accordance with DTAP part 1010 and 1019. See SF 1010 Market Research Summary Report. Due to the nature of the acquisition and unique qualifications of the requirement not Treasury Source were found to fulfill the acquisition.

A FedRAMP authorized vendor must be selected for this cloud service offering (CSO) requirement, per multiple sections of the Internal Revenue Manual. Given this requirement, the main destination for market research must be the FedRAMP marketplace: FedRAMP Marketplace. Additionally, all eligible FedRAMP vendors were researched in GSA e-buy to see if there were any GSA contracts (none found). Also, this is for SaaS that is specific to a research library. There is a special group at the Library of Congress called Federal Library and Information Network (FEDLINK) that specializes in products and services for federal library. See this page for details on their authorities and services offered: FEDLINK - Federal Library and Information Network. FEDLINK has a list of vendors and contracts that can be used via

interagency agreement. A search of their product and services page found nothing for this type of library SaaS: Contracting/Vendor Products & Services - Federal Library and Information Network (FEDLINK).
9.a Any other facts supporting this justification: None.
9.b Attachments: ☐ Yes ☒ No
10. A listing of sources, if any, that expressed, in writing, an interest in the acquisition: Ex Libris USA Inc.
11. A statement of the actions, if any, the Requiring Activity or Contracting Activity may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required: The contracting activity will continue to search the marketplace for other software brands and potential sources by using Government databases, consulting technical sources, and engaging with industry through RFIs. For the reasons set forth, the contracting activity has no plans at this time to compete future contacts for the types of supplies/services covered by this document. If another potential source emerges, the CO will assess whether competition for future requirements is feasible.
12. Certifications and Approvals:
12.a Program Office certification (Requiring Activity). I hereby certify that any supporting information and data provided, which form the basis for this justification, are accurate and complete to the best of my knowledge and belief.
Name: Laura A. Carlson **Date:** Digitally signed by Laura A. Carlson Date: 2025.09.24 08:20:41 -04'00' **Signature:**
12.b Contracting Officer certification and approval. I hereby determine the circumstances of this acquisition support the justification to acquire the item(s) on a sole source (including brand name) basis under the authority of FAR subpart 13.5. I also certify this justification is accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the authorized contracting officer for this acquisition, I hereby approve this justification.
Name: Kimberlee R. Brown **Date:** September 29, 2025 **Signature:** Kimberlee R. Brown
13. Additional Reviews and Approvals (As applicable):
13.a Bureau Chief Information Officer or Authorized Designee (for IT requirements that are over $5 million, but not exceeding $68 million) (Contracting Activity). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief, and representative of the Government's need. Therefore, I hereby consent to the approval of this justification. (Note: The Bureau CIO may delegate their authority for proposed contracts over $5 million, but not exceeding $13.5 million to the Associate Bureau CIO(s).)